

HOUSE BILL 1396

By Pearson

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 9; Title 67, Chapter 4 and Title 71, relative to
financial assistance.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 71, Chapter 5, is amended by adding
the following as a new part:

71-5-2701. Short title.

This part is known and may be cited as the "Guaranteed Basic Income Act" or
the "Protection Against Automation Act."

71-5-2702. Part definitions.

As used in this part, "eligible resident" means an individual who:

- (1) Is at least eighteen (18) years of age;
- (2) Possesses a valid Tennessee driver license or photo identification
license;
- (3) Is a full-time resident of this state; and
- (4) Was a full-time resident of this state in the immediately preceding
year.

71-5-2703. Guaranteed basic income grants.

(a) The department of human services shall develop and implement a program
in which eligible residents are awarded an annual guaranteed basic income grant
beginning in 2026. The department shall establish and publish guidelines for
applications, including eligibility and the award of grants.

(b) The department of human services shall distribute guaranteed basic income grants in the amount of three thousand dollars (\$3,000) per year, which may be paid as a monthly or semi-monthly stipend, to each eligible resident who submits a completed application and any supporting documents required by the department. An eligible resident must reapply to receive a grant in a subsequent year.

71-5-2704. Forms and rules.

The department shall promulgate forms and rules necessary to effectuate this part. Rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, and the department shall make forms available on the department's website.

71-5-2705. Guaranteed basic income fund.

(a) The guaranteed basic income program established pursuant to this part is funded through the guaranteed basic income fund established as a separate account in the general fund.

(b) The fund is composed of moneys appropriated by the general assembly for the fund, and gifts, grants, and other donations received by the department for the fund. Pursuant to action by the general assembly, the fund may receive deposits allocated from taxes levied under title 67, chapter 4.

(c) The state treasurer shall invest moneys in the fund for the benefit of the fund in accordance with § 9-4-603. Interest accruing on investments and deposits of the fund must be credited to and remain part of the fund. Any unencumbered moneys and any unexpended balance of the fund remaining at the end of a fiscal year do not revert to the general fund, but must be carried forward until expended in accordance with this part.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the code commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.